

TRUSTS

IN RE: 1988 GIVLER LIVING TRUST

CASE NUMBER: 23PB-0031977

This matter is on calendar for confirmation of filing of Receipts and Petition for Final Discharge. No Receipts have been filed. No Petition for Final Discharge has been filed. No Status Report has been submitted. This matter is continued to **Monday, August 10, 2026, at 2:30 p.m. in Department 44** to confirm filing of the Receipts and Petition for Final Discharge. If the Receipts and Petition for Final Discharge cannot be filed prior to the continued hearing date, the Trustee is ordered to submit a Status Report at least five court days prior to the continued hearing date. **No appearance is necessary on today's calendar.**

IN RE: EDWARD H. YOUNG AND JUDY J. YOUNG 2010 FAMILY TRUST

CASE NUMBER: 26PB-0033396

This matter is on calendar for further proceedings on a Petition for Order Confirming Successor Co-Trustees and Confirming Trust Assets. No further documents have been filed to address the issues raised on June 1, 2026. Considering Petitioner's failure to file and serve the documents necessary to move forward, the Petition is **DENIED** without prejudice. The clerk is directed to close the file. **No appearance is necessary on today's calendar.**

IN RE: GEORGE E. HERRICK AND M. GLORIA HERRICK 2003 REVOCABLE TRUST DATED JULY 29, 2003

CASE NUMBER: CVPB20-0030695

This matter is on calendar for further proceedings regarding resetting of settlement conference regarding status of settlement. This matter is also on calendar for hearing on Trustee's Notice of Motion and Motion to Enforce Settlement Agreement. The matter has been properly noticed with proof of service on file. No objections have been raised.

The Court's order dated November 12, 2020, has an agreement attached that established distribution of the trust. A motion for enforcement of the settlement agreement was filed by the former trustee, Carol Layton, on January 31, 2022. The motion was continued multiple times by the request of counsel for various reasons. While the motion for enforcement was pending, the successor trustee Karalee Layton, filed a Petition for Recovery of Trust Property on June 28, 2024. The Petition alleges that Brennan Asset Management Group inadvertently sent Major Herrick and Gary Herrick overpayments of \$107,455.00 each, to the detriment of George Herrick, and that Major and Gary would not return the overpaid funds. Gary then filed a Petition for an Accounting. An amended Petition for Recovery of Trust Property was filed on October 15, 2024, alleging the same overpayment claims as the first petition. The Ms. Layton also filed a Petition for Settlement of First Account and Report on November 26, 2024. All matters were continued again to January of 2025. The parties appeared on January 27, 2025, and stated that a settlement of all matters had been reached. The parties appeared on October 13, 2025, and stated that the settlement had been fully signed and payment would be made by Major and Gary forthwith. The matter has been continued several times for status of compliance with repayment.

The present motion seeks to enforce the agreement from October of 2025 regarding repayment of the \$107,455.00 by Major and Gary and requests the Court enter a judgment in the amount of \$107,455.00 against Major and Gary each, plus reasonable attorney's fees and costs. A copy of the agreement has not been submitted, thus the Court is unable to determine the terms of the agreement, whether the agreement resolves all pending petitions and motions, and whether the requested judgment is appropriate. The